

Patan Academy of Health Sciences Act, 2008

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Patan Health Sciences Academy Act, 2064

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
2. Some Nepal Acts Amendment Act, 2072 2072.11.13
3. Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 2075.11.19

Act No. 37 of the year 2064 made by the Legislature-Parliament

An Act made to provide for the Patan Health Sciences Academy

Preamble: Whereas it is desirable to make legal provisions regarding the establishment and operation of the Patan Health Sciences Academy for the purpose of producing skilled human resources required by the country by providing high-level study and research in the field of health sciences, and strengthening the health service system to provide quality health services to the general public,

The Legislature-Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Patan Health Sciences Academy Act, 2064".
- (2) This Act shall come into force immediately.
2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Academy" means the Patan Health Sciences Academy established pursuant to Section 3.
 - (b) "Assembly" means the Assembly constituted pursuant to Section 7.
 - (c) "Academic Council" means the Academic Council constituted pursuant to Section 9.
 - (d) "Executive Council" means the Executive Council constituted pursuant to Section 11.
 - (e) "Service Commission" means the Service Commission constituted pursuant to Section 13.
 - (f) "Educational Institution" means the Educational Institution established pursuant to Section 15.
 - (g) "Hospital" means the Hospital established pursuant to Section 16.
 - (h) "Hospital Management Committee" means the Hospital Management Committee constituted pursuant to Section 17.
 - (i) "Chancellor" means the Chancellor pursuant to Section 18.

- (j) "Vice-Chancellor" means the Vice-Chancellor pursuant to Section 19.
 - (k) "Deputy Vice-Chancellor" means the Deputy Vice-Chancellor pursuant to Section 20.
 - (l) "Dean of Academic Affairs" means the Dean of Academic Affairs pursuant to Section 21.
 - (m) "Registrar" means the Registrar pursuant to Section 22.
 - (n) "Dean" means the Dean pursuant to Section 23.
 - (o) "Director" means the Director pursuant to Section 24.
 - (p) "Teacher" means a person appointed to teach and conduct research in the Academy.
 - (q) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
- Chapter-2

Establishment, Nature, Functions, Duties and Powers of the Academy

3. Establishment of the Academy: (1) The Patan Health Sciences Academy is established for the purpose of conducting high-level study, teaching and research in the field of health sciences.
- (2) The principal office of the Academy shall be located in the Kathmandu Valley.
- (3) The Academy shall be called in English as "Patan Academy of Health Sciences". 4.

Academy to be an Autonomous Institution: (1) The Academy shall be an autonomous institution with perpetual succession. (2) The Academy shall have a separate seal for all its activities. (3) The Academy may, like a person, acquire, use, sell or otherwise manage movable and immovable property. (4) The Academy may, like a person, sue and be sued in its own name. 5. Nature of the Academy: The Academy shall have the following organizations, and their collective form shall be the nature of the Academy:- (a) Assembly, (b) Academic Council, (c) Executive Council, (d) Service Commission, (e) Faculty Board, (f) Faculty, (g) Research Centre, (h) Educational Institution, (i) Hospital, (j) Other bodies as prescribed. 6. Functions, Duties and Powers of the Academy: (1) The functions, duties and powers of the Academy shall be as follows:- (a) To conduct study, teaching, training and research on various subjects related to health, (b) To provide quality and accessible health services, (c) To make agreements with domestic and foreign universities, educational institutions and hospitals for conducting study, teaching, training and research programs on various subjects related to health, (d) To produce skilled human resources required for quality health services, (e) To maintain coordination with domestic or foreign universities, educational institutions or hospitals to strengthen various programs operated by the Academy and enhance the quality of such programs, (f) To establish, expand and strengthen relations and exchange mutual cooperation with domestic and foreign universities, academies and international organizations related to health, (g) To organize and cause to organize workshops, conferences and seminars on various subjects related to health, (h) To publish and cause to publish various books related to health, (i) To perform and cause to perform other functions as prescribed. (2) The functions, duties and powers of the Academy shall be exercised and performed through the organizations of the Academy.

Chapter-3 Constitution and Functions, Duties and Powers of the Assembly 7. Constitution of the Assembly: (1) There shall be an Assembly as the supreme body of the Academy. (2) The Assembly shall be constituted as follows:- (a) Chancellor ? Chairperson (b) Vice-Chancellor ? Vice-Chairperson (c) Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (d) Member, National Planning Commission (looking after health sector) ? Member (e) Deputy Vice-Chancellor ? Member (f) Two members nominated by the Assembly on the recommendation of the Executive Council from among the Deputy Vice-Chancellors of

universities and academies providing higher education in health sciences ? Member (g) Secretary, Ministry of Health and Population ? Member (h) Secretary, Ministry of Finance ? Member (i) Amended by the Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075.

Secretary, Ministry of Education, Science and Technology ? Member

(j) Dean of Academic Affairs ? Member

(k) One member nominated by the Assembly from among the Deans ? Member

(l) Director ? Member

(m) Omitted by the Some Nepal Acts Amendment Act, 2072

(n) Amended by the Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075. Chief, Lalitpur Metropolitan City ? Member

(o) Two members nominated by the Assembly on the recommendation of the Executive Council from among the heads of hospitals within the country that have agreements with the Academy ? Member

(p) Two members nominated by the Executive Council on the recommendation of the Academic Council from among the teachers, including at least one woman ? Member

(q) One member nominated by the Assembly on the recommendation of the Executive Council from among the heads of educational institutions ? Member

(r) Chairperson, Nepal Health Research Council ? Member

(s) Chairperson, Nepal Medical Council ? Member

(t) Four members nominated by the Assembly on the recommendation of the Executive Council, including at least one woman, ensuring representation from Dalit, Adivasi/Janajati, Madhesi and backward classes ? Member

(u) One member nominated by the Assembly on the recommendation of the Executive Council from among the donors ? Member

(v) One member nominated by the Assembly from among the employees working in the Academy ? Member

(w) Registrar ? Member-Secretary

(3) The term of office of the nominated members pursuant to sub-section (2) shall be three years.

(4) If the office of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period according to the same procedure by which the position was previously filled.

(5) The procedure relating to the meetings of the Assembly shall be as prescribed. 8. Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:-

(a) To approve the policy, plan and program of the Academy,

(b) To approve the annual budget of the Academy,

(c) To approve the rules of the Academy,

(d) To award scholarships, degrees, certificates, medals and prizes on behalf of the Academy,

(e) To award honorary degrees as prescribed,

(f) To guide and give necessary directions to various bodies of the Academy under its jurisdiction,

(g) To provide necessary suggestions to the Government of Nepal in the course of formulating national health and education policy,

(h) To approve the annual report of the Academy,

(i) To discuss and approve the audit report of the Academy,

(j) To make or cause to make necessary arrangements for the establishment of educational institutions,

(k) To perform and cause to perform other functions as prescribed.

Chapter-4

Constitution and Functions, Duties and Powers of the Academic Council

9. Constitution of the Academic Council: (1) There shall be an Academic Council as the body to systematize and regulate the educational, academic and research activities of the Academy.

(2) The Academic Council shall be constituted as follows:-

(a) Dean of Academic Affairs ? Chairperson

(b) Five members nominated by the Assembly on the recommendation of the Executive Council from among the chairpersons of various subject committees of the Academy ? Member

(c) Director ? Member

(d) Heads of bodies related to curriculum and examination of the Academy ? Member

(e) Two members nominated by the Assembly on the recommendation of the Executive Council from among the teachers, including at least one woman ? Member

(f) Two members nominated by the Assembly on the recommendation of the Executive Council from among the persons who have made outstanding contributions in the health sector, including at least one woman ? Member

(g) Dean nominated by the Deputy Vice-Chancellor from among the Deans ? Member-Secretary

(3) The term of office of the nominated members pursuant to sub-section (2) shall be three years.

(4) If the office of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period according to the same procedure by which the position was previously filled.

(5) The procedure relating to the meetings of the Academic Council shall be as prescribed. 10.

Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic Council shall be as follows:- (a) To formulate necessary policies, plans and programs to systematize and regulate the educational, academic and research activities of the Academy and submit them to the Assembly for approval, (b) To conduct and cause to conduct study and research programs to provide education in various subjects and levels related to health sciences, (c) To determine the qualifications of teachers required for the Academy, (d) To determine the standard of study, research, training and coaching programs conducted by the Academy and approve the curriculum, (e) To select students, (f) To determine the standard of examinations, (g) To conduct examinations and publish results, (h) To recommend to the Assembly to award degrees to students who successfully complete the study programs conducted by the Academy, (i) To recommend to the Assembly to award honorary degrees, scholarships, medals and prizes on behalf of the Academy, (j) To prepare quality textbooks, (k) To evaluate the study, research, training and coaching programs conducted by the Academy, (l) To determine fees for study, training and research, (m) To implement and monitor decisions related to the Academic Council approved by the Assembly, (n) To perform other functions as prescribed. Chapter-5 Constitution and Functions, Duties and Powers of the Executive Council

11. Constitution of the Executive Council: (1) There shall be an Executive Council to function as the executive body of the Academy. (2) The Executive Council shall be constituted as follows:- (a) Deputy Vice-Chancellor ? Chairperson (b) Dean of Academic Affairs ? Member (c) One Dean from among the Deans ? Member (d) One head of an educational institution who is a member of the Assembly ? Member (e) Director ? Member (f) One teacher from among the teachers ? Member (g) Registrar ? Member-Secretary (3) The members pursuant to clauses (c), (d) and (f) of sub-section (1) shall be nominated by the Vice-Chancellor on the recommendation of the Deputy Vice-Chancellor. (4) The term of office of the nominated members

pursuant to sub-section (2) shall be three years. (5) The procedure relating to the meetings of the Executive Council shall be as prescribed. 12.

Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows:- (a) To implement and cause to implement the decisions and directions of the Assembly, (b) To prepare draft rules required for the Academy and submit them to the Assembly for approval, (c) To prepare the policy, plan, annual program, progress report, annual budget, audit report and other proposals of the Academy and submit them to the Assembly for approval, (d) To monitor and evaluate the activities done by subordinate bodies and give directions to such bodies as necessary, (e) Subject to the policy direction of the Assembly, to operate, look after and protect the fund and movable and immovable property of the Academy, sell or give on lease. Provided that, while selling immovable property received from the Government of Nepal, the approval of the Government of Nepal shall be obtained. (f) To appoint and promote teachers and employees required for the Academy on the recommendation of the Service Commission, (g) To accept donations and endowments received by the Academy, (h) To perform and cause to perform other functions as prescribed. Chapter-6 Constitution and Functions, Duties and Powers of the Service Commission 13. Constitution of the Service Commission: (1) There shall be a Service Commission to recommend the appointment and promotion of teachers and employees of the Academy. (2) The Service Commission shall consist of the following Chairperson and members:- (a) Chairperson ? from among persons who have obtained at least a post-graduate degree in health sciences, worked in the health sector for twenty years, and served as a special class officer or professor and performed managerial or academic responsibilities. (b) Member, Public Service Commission ? Member (c) One teacher from among the teachers ? Member (3) The Chairperson and member pursuant to clauses (a) and (c) of sub-section (2) shall be nominated by the Assembly. (4) The term of office of the Chairperson and nominated member of the Service Commission shall be four years. (5) Other functions, duties and powers of the Service Commission shall be as prescribed. (6) The remuneration, facilities and other terms of service of the Chairperson of the Service Commission and the facilities of the members shall be as prescribed. (7) The procedure relating to the meetings of the Service Commission shall be as prescribed. Chapter-7 Faculty Board, Educational Institution, Hospital and Other Bodies 14. Provision relating to Faculty Board, Faculty and Research Centre: (1) The Academy may establish a Faculty Board, Faculty and Research Centre. (2) The constitution and functions, duties and powers of the Faculty Board, Faculty and Research Centre established pursuant to sub-section (1) shall be as prescribed. 15.

Establishment and Operation of Educational Institution: (1) The Academy may establish Educational Institutions as required with the objective of conducting study and research on various subjects related to health sciences. (2) The operation of an Educational Institution established pursuant to sub-section (1) shall be as prescribed. 16. Establishment and Operation of Hospital: (1) The Academy shall establish a Hospital for conducting high-level study and research in the health sector and providing quality health services. (2) The Patan Hospital established and operating under the prevailing law at the time of commencement of this Act shall be deemed to have been established pursuant to sub-section (1). (3) The operation and management of the Hospital shall be as prescribed. 17. Hospital Management Committee: (1) There shall be a Hospital Management Committee for the smooth operation of the Hospital. (2) The constitution and functions, duties and powers of the Hospital Management Committee shall be as prescribed. Chapter-8 Office Bearers, Teachers and Employees of the Academy 18. Chancellor: (1) The Prime Minister shall be the Chancellor of the Academy. (2) The Chancellor shall be the head of the Academy. 19. Vice-Chancellor: (1) The Minister or Minister of State for Health and Population shall be the Vice-Chancellor of the Academy. (2) The Vice-Chancellor may inspect the Academy as required and give directions to the Academy. 20. Deputy

Vice-Chancellor: (1) The Deputy Vice-Chancellor shall be the chief office bearer working full-time in the Academy. (2) A committee consisting of two other members of the Assembly chaired by the Vice-Chancellor shall be formed by the Chancellor to recommend for appointment to the post of Deputy Vice-Chancellor, and the Chancellor shall appoint the Deputy Vice-Chancellor on the recommendation of that committee. (3) The term of office of the Deputy Vice-Chancellor shall be four years. (4) The functions, duties and powers, remuneration, facilities and other terms of service of the Deputy Vice-Chancellor shall be as prescribed. 21.

Dean of Academic Affairs: (1) The Vice-Chancellor shall appoint the Dean of Academic Affairs on the recommendation of the Deputy Vice-Chancellor for the oversight of the educational and academic work of the Academy. (2) The Dean of Academic Affairs shall be an office bearer working full-time in the Academy. (3) The term of office of the Dean of Academic Affairs shall be four years. (4) Other functions, duties and powers, remuneration, facilities and other terms of service of the Dean of Academic Affairs shall be as prescribed. 22.

Registrar: (1) The Vice-Chancellor shall appoint the Registrar on the recommendation of the Deputy Vice-Chancellor for the oversight of financial and personnel administration related work of the Academy. (2) The Registrar shall be an office bearer working full-time in the Academy. (3) The term of office of the Registrar shall be four years. (4) Other functions, duties and powers, remuneration, facilities and other terms of service of the Registrar shall be as prescribed. 23.

Dean: (1) The Deputy Vice-Chancellor shall appoint the Dean to work as the head of a Faculty of the Academy. (2) The Dean shall be an office bearer working full-time in the Academy. (3) The term of office of the Dean shall be four years. (4) Functions, duties and powers, remuneration, facilities and other terms of service of the Dean shall be as prescribed. 24.

Director: (1) The Deputy Vice-Chancellor shall appoint the Director to work as the administrative head of the Hospital. (2) The term of office of the Director shall be four years. (3) Functions, duties and powers, remuneration, facilities and other terms of service of the Director shall be as prescribed. 25.

Other Office Bearers: (1) There may be other office bearers in the Academy as prescribed. (2) The appointment, functions, duties and powers, remuneration, facilities and terms of service of office bearers pursuant to sub-section (1) shall be as prescribed. 26.

Removal from Office: (1) If the Deputy Vice-Chancellor, Dean of Academic Affairs or Registrar fails to fulfill his/her official responsibility or does not behave in accordance with the office or if one-fourth of the members of the Assembly then in office submit a written application to the Chancellor stating that he/she has not performed his/her duty honestly, the Chancellor shall form a three-member investigation committee consisting of a member nominated as chairperson, another member and the Secretary of the Ministry of Health and Population. (2) If the investigation committee pursuant to sub-section (1) recommends that the Deputy Vice-Chancellor, Dean of Academic Affairs or Registrar has not fulfilled his/her official responsibility, has not worked honestly or has not performed his/her duty, and if that matter is passed by a meeting of the Assembly, the Chancellor shall remove such Deputy Vice-Chancellor, Dean of Academic Affairs or Registrar from his/her office. (3) After the formation of the investigation committee pursuant to sub-section (1), such office bearer shall be automatically suspended from his/her office until a decision is made by the Assembly pursuant to sub-section (2). (4) Provisions relating to the removal from office of other office bearers of the Academy other than the Deputy Vice-Chancellor, Dean of Academic Affairs or Registrar shall be as prescribed. (5) Before recommending removal of an office bearer of the Academy pursuant to sub-section (2), the investigation committee shall give him/her an opportunity to submit a defense against the allegations leveled against him/her. 27.

Teachers and Employees of the Academy: (1) There shall be teachers and employees in the Academy in the required number. (2) The appointment of teachers and employees of the Academy shall be made on the recommendation of the Service Commission as prescribed. (3) Functions, duties and powers, remuneration, facilities and other terms of service of teachers and employees of the

Academy shall be as prescribed. Chapter-9 Fund, Accounts and Audit of the Academy 28.

Fund of the Academy: (1) The Academy shall have a separate Fund. (2) The Fund pursuant to sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received from educational fees and service fees, (c) Amount received in the form of grant or loan from domestic or foreign individuals, associations, institutions or foreign governments, (d) Amount received from other sources. (3) Before receiving any amount from foreign individuals, associations, institutions or governments pursuant to clause (c) of sub-section (2), the Academy shall obtain the approval of the Government of Nepal. (4) The amount of the Fund of the Academy shall be deposited by opening an account in a commercial bank. (5) All expenses of the Academy shall be borne from the Fund pursuant to sub-section (1). (6) The operation of the Fund and account of the Academy shall be as prescribed. 29. Accounts and Audit: (1) The accounts of the income and expenditure of the Academy shall be kept in accordance with the prevailing law. (2) The audit of the Academy shall be carried out by the Auditor General or an auditor designated by him/her. Chapter-10 Miscellaneous 30. No Affiliation to be Granted: The Academy shall not grant affiliation to any educational institution. 31. May Merge Other Institutions: (1) If any institution related to health sciences established and operating under the prevailing law wishes to merge with the Academy, the Academy may merge such institution into the Academy. (2) The basis and procedure for merging an institution pursuant to sub-section (1) shall be as prescribed. 32. To Act in Accordance with National Education and Health Policy: The Academy shall act in accordance with the national health and education policy approved by the Government of Nepal. 33. Provision regarding Reservation: (1) The Academy shall make reservation for students from rural areas who have studied in community schools and passed the School Leaving Certificate Added by the Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075. or equivalent, being not less than ten percent of the total number of students enrolled in each academic session, for women, Dalit, Adivasi/Janajati, Madhesi and students from backward areas. (2) Students shall be selected by competition for the seats reserved pursuant to sub-section (1). 34.

Priority to be Given while Enrolling Students: (1) The Academy shall give priority for enrollment in the undergraduate level of the Academy to health service assistant employees who have passed the School Leaving Certificate Added by the Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075. or equivalent, and have passed the proficiency certificate level in health sciences related subjects Added by the Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075. or equivalent, and have worked in a health institution in a remote area for a prescribed period. (2) An employee wishing to enroll pursuant to sub-section (1) must have fulfilled the criteria prescribed by the Nepal Medical Council. 35. Scholarship to be Provided: (1) The Academy shall provide full scholarship to indigent students in at least fifteen percent of the total number of students enrolled in each academic session. Explanation: For the purpose of this Section, "indigent" means students who have studied in community schools and passed the School Leaving Certificate Added by the Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075. or equivalent, and are recommended as indigent by the concerned Amended by the Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075. Rural Municipality or Municipality on prescribed basis. (2) Taking the fifteen percent referred to in sub-section (1) as one hundred percent, scholarship shall be provided only to students from women, Dalit, Adivasi/Janajati, Madhesi and backward areas in forty-five percent of those seats. (3) The Academy may provide partial scholarship to indigent students. (4) The basis for providing scholarship pursuant to sub-sections (1), (2) and (3) shall be as prescribed. (5) Any body or institution may provide a scholarship to any student for study in the Academy. 36.

To Work in Prescribed Place: (1) A Nepali student studying on scholarship under this Act shall, if having received full scholarship from the Academy, work in a health institution in a rural area designated by the Government of Nepal for at least four years, and if having received partial scholarship, for at least two years. (2) If a Nepali student studying on a scholarship from any body or institution has been subjected to a condition by the body or institution providing the scholarship to work at a certain place for a certain period in return for receiving such scholarship, the student shall work in accordance with that condition, and if no such condition has been imposed, shall work in accordance with sub-section (1). (3) A student enrolled on priority basis under Section 34 shall work in a health institution in a rural area designated by the Government of Nepal for at least two years. (4) The Academy shall issue a permanent certificate of academic qualification to a Nepali student studying on priority or scholarship under Sections 34 and 35 only after such student has worked for the full period mentioned in sub-section (1), (2) or (3). (5) The Academy may make necessary arrangements to encourage Nepali students other than those studying on priority or scholarship under Sections 34 and 35 to work in health institutions in rural areas after their studies. 37. Annual Report: (1) The Academy shall submit to the Government of Nepal an annual report of its activities during the year within three months of the end of each fiscal year. (2) The report pursuant to sub-section (1) shall include, among other things, a brief description of the work done by the Academy during the year and the achievements of the Academy. 38. Delegation of Powers: (1) The Assembly may delegate some of the powers conferred upon it under this Act to the Academic Council, Executive Council or Deputy Vice-Chancellor as necessary. (2) The Academic Council, Executive Council or Service Commission may delegate some of the powers conferred upon it under this Act to any office bearer of the Academy or any subordinate body as necessary. 39. Proceedings Not to be Invalidated: No act or proceeding of the Academy shall be invalidated merely by reason of the vacancy in the office of any office bearer or member of the Academy or any defect in the appointment or nomination of any office bearer or member of any organization of the Academy. 40. May Give Directions: The Government of Nepal may give necessary directions to the Academy in relation to its work and proceedings, and it shall be the duty of the Academy to comply with such directions. 41.

Contact with Government of Nepal: The Academy shall contact the Government of Nepal through the Ministry of Health and Population. 42. Oath to be Taken: A person appointed to the office of an office bearer of the Academy shall take an oath in the prescribed format before assuming the duties of his/her office. 43. Employees May Remain in the Academy: (1) Among the employees of the Nepal Health Service working in the Hospital at the time of commencement of this Act, those employees wishing to work in the Academy shall submit an application to the Ministry of Health and Population within six months from the date of commencement of the employee service related rules made under this Act. (2) If the Government of Nepal grants approval for an employee submitting an application pursuant to sub-section (1) to remain as an employee of the Academy, such employee shall be deemed to be an employee of the Academy. (3) The service period of an employee who remains in the Academy pursuant to sub-section (2) spent working in the health service shall be counted in the service period of the Academy. 44. Power to Make Rules: The Academy may make necessary rules for the purpose of implementing the objectives of this Act. Provided that, while making rules on matters that may cause additional financial burden to the Government of Nepal, the approval of the Government of Nepal shall be obtained. 45. Repeal and Saving: (1) The Patan Hospital Development Committee (Formation) Order, 2063 is hereby repealed. (2) All acts and proceedings done under the Order pursuant to sub-section (1) shall be deemed to have been done under this Act. (3) All movable and immovable property, transactions, loans, assets, including all rights and liabilities in the name of the Development Committee under the Order pursuant to sub-section (1) shall be deemed to have been transferred to the Academy. (4) Teachers and employees working in the Development Committee under the

formation Order pursuant to sub-section (1) shall be deemed to have been transferred to equivalent level and grade posts in the Academy. (5) Until a Hospital Management Committee is constituted under this Act, the Committee constituted under the Order pursuant to sub-section (1) shall perform the functions of the Hospital Management Committee.